

Yumnam Sanathoi Devi vs Chanam Pikeshe Meitei on 15 June, 2026

Author: Ahanthem Bimol Singh

Bench: Ahanthem Bimol Singh

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IN THE HIGH COURT OF MANIPUR
AT IMPHAL
MC(Matrimonial Appeal) No. 14 of 2025
Ref:- Matrimonial Appeal No. of 2026

Yumnam Sanathoi Devi, aged about 30 years, W/o
Chanam Pikeshe Meitei, a resident of Lilong Arapti Mayai
Leikai, P.O. & P.S. Lilong, Imphal West District, Manipur.

..... Applicant

Vs.

Chanam Pikeshe Meitei, aged about 35 years, S/o Ch.
Shyam Meitei, a resident of Lilong Arapti Mayai Leikai,
P.O. & P.S. Lilong, Imphal West District, Manipur.

..... Respondent

BEFORE HON'BLE THE CHIEF JUSTICE MR. M. SUNDAR HON'BLE MR. JUSTICE AHANTHEM BIMOL SINGH For the applicant Mr. A. Gautam Sharma, Advocate along with Ms. Ch. Monibala Devi, Advocate Date of order 15.06.2026 (O R D E R) (Mr. M. Sundar, CJ) [1] Read this in conjunction with and in continuation of earlier proceedings made in the previous listing on 16.04.2206 which reads as follows :

'Sl. No.6 IN THE HIGH COURT OF MANIPUR AT IMPHAL Yumnam Sanathoi Devi Applicant Vs. Chanam Pikeshe Meitei Respondent BEFORE HON'BLE THE CHIEF JUSTICE MR. M. SUNDAR HON'BLE MR. JUSTICE AHANTHEM BIMOL SINGH (ORDER) (Order of the Court was made by Mr. M. Sundar, CJ) 16.04.2026.

[1] Captioned 'Miscellaneous Case' ('MC' for the sake of brevity) has been filed with a 'Condonation of Delay' ('CoD' for the sake of brevity) prayer qua 10(ten) days delay in filing an appeal assailing 'judgement and decree dated 08.04.2025 made in Matrimonial (Divorce) Suit No. 57 of 2024 (CNR: MNIW05-000161-2024) on the file of Family Court, Manipur at Lamphelpat, Imphal' {hereinafter 'impugned decree' for the sake of brevity, clarity and convenience}.

[2] In and vide the impugned decree, a petition for divorce by wife has been dismissed and visitation rights qua minor child has been given.

[3] To be noted, notice was ordered in captioned CoD application, respondent husband has refused to receive the notice and tracking report of the postal department demonstrating refusal has been filed as proof of service. There is no difficulty as regards this aspect. [4] However, today as CoD application was taken up, this Court had the benefit of perusing memorandum of grounds of matrimonial appeal. This Court finds that the matrimonial appeal has been presented in this Court on 05.08.2025 under Section 28 of the 'Hindu Marriage Act, 1955 (25 of 1955)' {'HMA' for the sake of brevity}. [5] The court which made the impugned decree i.e., 'FAMILY COURT, MANIPUR AT LAMPHEL PAT, IMPHAL', shall hereinafter be referred to as 'said Original court' for the sake of convenience.

[6] From the description/name of said Original court, it appears that impugned decree has been made by a Family court.

[7] The following questions arise:

(i) whether the court which made the impugned decree i.e., said Original court is a 'Family court' within the meaning of section 2(d) of the 'Family Courts Act, 1984 (66 of 1984)' {'FCA' for the sake of brevity} read with section 3 of FCA ?;

(ii) whether the impugned decree was made by a District court being a 'District court' within the meaning of section 3(b) of HMA ?;

(iii) if the court which made the impugned decree is a Family court within the meaning of FCA [section 2(d) read with 3 of FCA] can only a statutory appeal under Section 19 of FCA be filed and is a appeal under Section 28 of HMA maintainable?

[8] To be noted, whether it is an appeal under Section 28 of HMA or section 19 of FCA, the same has to be heard by a Division Bench, the reason is, as regards a section 28 appeal, Rule 10, more particularly Rule 10(a) of General Rules of Chapter-II of High Court of Manipur Rules, 2019 mandates that such appeals are to be heard by a Division Bench. If it is an appeal under Section 19 of FCA sub-section (6) of section 19 of FCA mandates that such appeal shall be heard by a Bench consisting of 2(two) or more judges.

[9] To be noted, Rule 10(a) of General Rules of Chapter-II of High Court of Manipur Rules, 2019 reads as follows:

'(10) (a) a suit or proceeding between the parties to a marriage for a decree of nullity of marriage (declaring the marriage to be null and void or, as the case may be, annulling the marriage) or restitution of conjugal rights or judicial separation or dissolution of marriage;' Section 19(6) of FCA reads as follows:

'19 (6) An appeal preferred under sub-section (1) shall be heard by a Bench consisting of two or more Judges'.

[10] We also notice that if it is an appeal under Section 28 of HMA, the prescribed period of limitation is 90 (ninety) days vide sub- section (4) of section 28 of HMA. If it is a statutory appeal under Section 19 of FCA, the prescribed period of limitation is 30 (thirty) days vide sub-

section (3) of section 19 of FCA.

[11] Faced with the above situation, Ms. Ch. Monibala Devi, learned counsel on record for MC applicant sought time to examine the position and revert to this Court.

[12] As service in CoD application is complete, in/from the next listing, Registry to not to list the captioned matter under cause list caption 'SERVICE NOT COMPELTED'.

[13] List under a suitable cause list caption on 15.06.2026.

[14] List on 15.06.2026.

	JUDGE	CHIEF JUSTICE
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[2] In the hearing today, Mr. A. Gautam Sharma along with Ms.

Ch. Monibala Devi, learned counsel on record for the MC applicant is before this Court (physical Court).

[3] Adverting to afore referred 16.04.2026 proceedings and more particularly paragraph 7 thereat, Mr. A. Gautam Sharma, learned counsel very fairly submitted that the Court which made the impugned decree is a Family Court within the meaning of Section 2(d) of FCA and therefore, the appeal should be one under Section 19 of FCA and not under Section 28 of HMA. To be noted, the short forms/abbreviations used in the earlier proceedings dated 16.04.2026 continue to be used in instant order/proceedings for the sake of convenience and clarity.

[4] In the light of the fair position taken by learned counsel for MC applicant, learned counsel made 2 (two) requests and the same are as follows :

i) Learned counsel sought leave of this Court to withdraw the captioned MC application (CoD application) but made a further plea to preserve all the rights and contentions of MC applicant to come out with a fresh MC application with correct number of days of delay sought to be condoned after amending the main appeal. To be noted, the limitation for a Section 19 FCA appeal is 30 (thirty) days and the limitation for Section 28 HMA appeal is 90 (ninety) days.

ii) The second request is to permit MC applicant to take out an application (MC) for amending the main appeal as one under Section 19 of FCA as it is being filed as one under Section 28 of HMA.

[5] Both afore referred requests of learned counsel are innocuous and inter-alia therefore the same are acceded to.

[6] As regards withdrawal of MC, learned counsel has made an endorsement in the case file and scanned reproduction of the same is as follows :

[7] In the light of the narration thus far, captioned MC is disposed of as withdrawn/closed albeit with preservation of all rights and contentions of MC applicant in the manner set out supra. There shall be no order as to costs.

JUDGE

CHIEF JUSTICE

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